BULISA MBANO N.O
versus
BENSON PHILIP HLUNGUPI SAMUDZIMU
and
THE SHERIFF FOR ZIMBABWE

HIGH COURT OF ZIMBABWE
CHIKOWERO J
HARARE; 3 March and 18 May 2026

Urgent Court Application

G R J Sithole, for the applicant
H Nkomo with E Khumalo, for the 1st respondent
No appearance for the 2nd respondent

CHIKOWERO J:

Introduction

[1] This application is an abuse of Court process. It is not properly before me. It is struck off the roll with costs on the legal practitioner and client scale.

The Factual Background

[2] On 10 March 2025 the first respondent, as plaintiff (Samudzimu) issued summons under case number HCH 1089/25 for payment of the total sum of US$265 000 being money lent and advanced to one Author Michael Rujeko Mavhima (Mavhima), as defendant, and, among other relief, a declaration of Mavhima's immovable property, namely a certain piece of land situate in the District of Salisbury called Remaining Extent of Subdivision A of Subdivision A of Lot 58 Block B of Avondale held under Deed of Transfer 6022/97 as specially executable.

[3] The money lent and advanced to Mavhima was acknowledged under three acknowledgments of debt signed on 27 March 2024, 1 August 2024 and 29 October 2024 by him and two witnesses. Further, the record of the matter which I am relating to shows that Mavhima signed three acknowledgments of receipt of the amounts reflected in the acknowledgments of

debt. The acknowledgments of receipt bear the same dates as the acknowledgments of debt. Save for that of 29 October 2024 which bears the signature of one witness, the other two reflect the signatures of two witnesses apiece. I have also seen powers of attorney signed by Mavhima. These made it possible for three mortgage bonds to be registered against the property described at para 2 of this judgment.

[4] Mavhima, represented by a firm of legal practitioners, filed his notice of entry of appearance to defend, plea, schedule of documents together with pre-trial conference issues as well as the summary of evidence together with discovery affidavit on 27 March 2025, 10 April 2025, 7 July 2025 and 8 July 2025 respectively.

[5] Samudzimu having replicated and filed his pre-trial conference papers the parties eventually convened a round table meeting at Mhishi Nkomo Legal Practice. The meeting was held on 21 July 2025 were Samudzimu and his legal practitioner attended. So did Mavhima. Mavhima was not only legally represented by Mr T R Madzingira but was also accompanied by a colleague, Mr Chirinda. The parties failed to settle the matter. On the same date they filed the minutes of the round table meeting.

[6] On 19 September 2025 the parties appeared before me for a pretrial conference. Both were legally represented. In view of the documentation that I have already referred to, I took the view that the matter was capable of being settled at the pre-trial conference stage. Accordingly, I postponed the matter to 30 September 2025 to enable the parties to attempt settlement. I directed that should they settle, they were to file the necessary papers on perusal of which I would issue an appropriate order.

[7] Happily, the parties filed a deed of settlement and a draft consent order. On 30 September 2025 I granted an order by consent the terms of which included the requirement by Mavhima to pay the sum of US$210 000 as well as the sale of the immovable property that we now know.

[8] Come 5 February 2026, the present applicant, having been appointed *curator bonis* of Mavhima by order of a Judge of this Court sitting in Chambers on 30 January 2026, filed an urgent chamber application the relevant part of which reads as follows:

> "TERMS OF THE FINAL ORDER SOUGHT
>
> That you show cause, if any, why a final order should not be made in the following terms:

1. The execution of the order of this Honourable Court made under HCH 1089/25 be and is hereby stayed until the matter under case number HCH 450/26 has been finalised.

2 The 1st respondent shall pay the costs of suit.

INTERIM RELIEF GRANTED

3. The Execution of the order of this honourable court made under HCH 1089/25 be and is hereby stayed until this matter is finalised."

The urgent chamber application was filed under case number HCH 506/26. The parties before me now were the same litigants under HCH 506/26, in the same capacities.

[9] Urgency under HCH 506/26 was alleged on the following basis. First, on being appointed the *curator bonis* of Mavhima the applicant's attention was drawn to a notice of attachment issued pursuant to a writ of execution of the consent order of 30 September 2025. Second, that the applicant, as curator bonis of Mavhima, filed a summons under case number HCH 450/26 seeking to set aside the acknowledgments of debt, mortgage bonds, deed of settlement and consent order of 30 September 2025 on the alleged basis that, as a result of mental incapacity, Mavhima was incapable of managing his affairs when he signed the acknowledgments of debt and caused the registration of the mortgage bonds in 2024. The interim relief sought in the urgent chamber application was premised on the pendency of the summons matter under HCH 450/26.

[10] On perusing the urgent chamber application I was satisfied that the matter was not urgent. I thought it unnecessary to set down the matter for argument, even on the issue of urgency. Thus, on 7 February 2026 I issued an order reading:

"1. The matter is not urgent.
2. It is removed from the roll of urgent matters."

That order meant that the matter was now an ordinary court application and could be prosecuted as such.

[11] In what I think was a strategy designed to avoid the exigencies of the order of 7 February 2026, the applicant, on 17 February 2026, filed a notice withdrawing case number HCH 506/26. Effectively, the applicant withdrew what was then an ordinary court application. On the same date, he then filed what he described as an urgent court application. The same was filed under HCH 736.26. It is the subject of this judgment. The only difference between what has now been

presented as an urgent court application and what was earlier filed as an urgent chamber application is in the heading of the two processes. The substance of the two applications is the same. The evidence relied upon both to justify urgency and to seek the relief on the merits, as is also the relief itself, is the same.

[12] I agree with Ms E V Khumalo, for the first respondent, that what the applicant has simply done is to re-dress his earlier application (which he withdrew) as an urgent court application. A matter which was filed as an urgent chamber application, and removed by a judge from the roll of urgent matters on the basis that it is not urgent (and subsequently withdrawn by the applicant himself) cannot have another life on the urgent roll simply because it has been given the form of an urgent court application. A court of law looks at the substance of a matter placed before it, rather than the form thereof. It cannot be honest conduct of litigation for an applicant to withdraw what is in fact an ordinary court application and to substitute it with what it purports to be an urgent court application, but bearing the same foundation. The applicant has duplicated proceedings. It is for this abuse of court process that I consider punitive costs to be warranted. See *Nel* v *Waterberg Landbouwers Ko-operative Vereeniging* 1946 AD 597 and *Mahomed and Son* v *Mahomed* 1959(2) SA 688T.

[13] To demonstrate the flagrant abuse of court process by the applicant, and for purposes of completeness, I pause to record the terms of the draft order filed in this matter. It reads, in relevant part:

> "IT IS ORDERED BY CONSENT THAT:
>
> 1. The execution of the order of this Honourable Court made under HCH 1089/25 be and is hereby stayed until the matter under Case Number HCH 450/26 has been stayed.
> 2. The 1st respondent shall pay the costs of suit."

[14] This I say. Mr Sithole is not correct in urging me not to order costs on the basis that the applicant is before me as a *curator bonis*. It is the applicant who has abused court process. Further, despite the fact that he instituted the application the subject of this judgment in his capacity as a curator bonis the applicant himself prayed for costs against the first respondent. Para 11 of this judgment is clear in this regard.

[15] In light of my finding that the matter is not properly before me the need to deal with all the other issues argued before me falls away.

[16] In the result, IT IS ORDERED THAT:

1. The matter be and is struck off the roll.
2. The applicant shall pay the first respondent's costs of suit on the legal practitioner and client scale.

CHIKOWERO J: …….

Moyo and Jera Legal Practitioners, Applicant's Legal Practitioners
Mhishi Nkomo Legal Practice, 1st respondent's Legal Practitioners